

Shri Ghanshyam Das v. KESCO & Another

High Court of Judicature at Allahabad · Division Bench · 22 December 2009 · WRIT - C No. - 69346 of 2009 ·
Recovery stayed and supply restored pending writ; listed thereafter.

HEADNOTE

On a consumer's writ alleging that compounding charges were extracted on the date of checking without basis, opportunity, or the procedure in the Electricity Act, 2003 and Electricity Supply Code, 2005, the Allahabad High Court stayed recovery until further orders, directed restoration of supply, and required current monthly bills to be paid. The merits were not decided; later orders only adjourned the still-pending writ.

FACTUAL SUMMARY

The petitioner, a KESCO consumer, approached the Allahabad High Court alleging that on the date of checking he was compelled to pay compounding charges without any stated basis, without opportunity, and without following the procedure in the Electricity Act, 2003 and the Electricity Supply Code, 2005. Counsel for KESCO appeared. The Court granted three weeks to file a counter affidavit. Later orders in 2023 and 2025 only adjourned the still-pending writ for affidavits and listing.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory stay, restoration, and listing

HOLDING

Pending the writ, recovery of the compounding demand remains stayed until further orders; respondents must restore electricity supply; the petitioner shall pay monthly bills regularly. Time was allowed for a counter affidavit. Later orders only listed the matter. The compounding-procedure challenge was not decided. ¶ 1

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy On a consumer's writ alleging that compounding charges were extracted on the date of checking without basis, opportunity, or the procedure in the Electricity Act, 2003 and Electricity Supply Code, 2005, the Allahabad High Court stayed recovery until further orders, directed restoration of supply ¶ 1

procedural-listing-no-construction On a consumer's writ alleging that compounding charges were extracted on the date of checking without basis, opportunity, or the procedure in the Electricity Act, 2003 and Electricity Supply Code, 2005, the Allahabad High Court stayed recovery until further orders, directed restoration of supply ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER COMPOUNDING CHARGES DEMANDED ON THE DATE OF CHECKING LACKED BASIS, OPPORTUNITY, AND COMPLIANCE WITH THE ELECTRICITY ACT, 2003 AND ELECTRICITY SUPPLY CODE, 2005

Only interim stay and restoration were granted; the writ remained pending on later listings. ¶ 1